

Council procedure

Working draft. Not adopted law. Not a legal opinion.

29 September 2026

In plain words

- Council meets at least once a month.
- Members get the agenda a week ahead and the minutes a week after.
- No decisions by text, email, or phone.
- Each leader posts 3 to 5 goals and reports on them every quarter.
- One open meeting a year where members ask anything.

Why this draft is here

Decisions made by text message or behind closed doors can't be checked. This code makes every decision happen at a real meeting with a record members can read.

1. Purpose

- 1.1 This code is how council meets and decides. A decision that spends money, hires, or gives out a benefit exists only if it is a resolution made at a meeting that follows these rules.

2. Meetings

- 2.1 Council must meet at least once every calendar month. The records officer posts the year's meeting dates by January 15.
- 2.2 If a month passes with no meeting, the appeal body posts that fact by the 5th day of the next month, and council honoraria stop until the missed meeting is held and its minutes are posted.
- 2.3 The records officer gives each councillor, and posts for members, the agenda and draft resolutions at least 7 days before a regular meeting.
- 2.4 An emergency meeting may be called on 24 hours' notice. It may decide only the item written in the notice. That decision ends at the close of the next regular meeting unless that meeting confirms it. A payment made on a decision that has ended must be repaid by the person who approved it, within 30 days.
- 2.5 Quorum is set in the constitution. If quorum is lost, the meeting stops. A vote after that is void.
- 2.6 The chair votes once, like everyone else. A tie fails.
- 2.7 A person with a conflict under the conduct code leaves before the item is called. The minutes record who left and for which item.

- 2.8** Members may attend regular meetings, in person or online. Council may close part of a meeting only for legal advice or a named person's private information. The closed item must be listed on the agenda in general words. No money may be spent in a closed part of a meeting. A spending decision made there is void.

3. The record

- 3.1** The records officer posts the minutes within 7 days of each meeting and keeps them posted for 10 years. Minutes show each resolution number, who moved and seconded it, how each person voted, and any refusal.
- 3.2** A decision made by text, email, or phone is not a resolution. A payment, hire, or housing decision made that way is unauthorized. The person who approved it must repay the money, or reverse the decision, within 30 days. The appeal body posts the breach within 7 days of confirming it.
- 3.3** Every signed resolution is posted within 7 days of signing.

4. Taking office and leaving it

- 4.1** Before voting, the chief and each councillor must read the oath out loud at a meeting and sign it. The records officer posts it within 2 days. A vote cast before signing is void.
- 4.2** In the 14-day handover at the start of a term, the outgoing council must brief the incoming council on every open file, contract, and program, in writing.
- 4.3** Within 7 days after a term ends, the outgoing person hands over records, keys, devices, and passwords to the records officer and signs a list of what was handed over. A person who does not is not eligible for office, a contract, or a program decision until the list is signed. The appeal body posts the omission on day 8.

5. Goals and reports

- 5.1** Within 30 days of taking office, the chief and each councillor give the records officer 3 to 5 goals for the term. Each goal says what will be done and by when, or what number will be reached.
- 5.2** The records officer posts the goals within 2 days. If a person misses day 30, their honorarium stops on day 31 until the goals are posted.
- 5.3** Within 30 days after each quarter, each person files a short report: what happened on each goal, what was missed, and what comes next. It is posted within 2 days. If it is late, that person's honorarium stops until it is posted.
- 5.4** Within 60 days after each year ends, council holds one open meeting for all members, on reserve with an online option, on 21 days' notice. Members may ask any question. Nobody screens questions. A question not answered at the meeting gets a written answer within 14 days. A recording or written record is posted within 7 days.
- 5.5** If the yearly meeting is not held, the appeal body calls it, and council honoraria stop until it is held and the record is posted.

6. Changing this code

- 6.1 Council must not amend or suspend this code by resolution. A resolution that tries to is void on the day it is signed, and the appeal body posts that within 14 days.
- 6.2 An amendment passes under the constitution, Part 9: a majority of the votes cast are yes, and at least 25 percent of all electors cast a ballot.
- 6.3 An amendment that removes or weakens a protected rule listed in the constitution, Part 8, passes only if at least two thirds of the votes cast are yes and at least 40 percent of all electors cast a ballot.
- 6.4 The electoral officer posts the full proposed text and a plain summary at least 45 days before the vote, sends it to every elector with a known address, and posts the count within 3 days.

7. Review and coming into force

- 7.1 This code comes into force on the day after the electors approve it under the constitution, Part 9. Until then it is a draft. It does not repeal any election code, by-law, or policy already in force.
- 7.2 Where a law already in force sets its own rule for being replaced, the vote must meet that rule too. A lawyer should compare the two texts before the vote.
- 7.3 The appeal body reviews this code every 4 years from the day it comes into force and posts a written report within 60 days after that anniversary.
- 7.4 Within 90 days of that report, council either puts a recommended amendment to the electors or posts written reasons for not doing so. If council does neither, council honoraria stop on day 91 until one of those is done.
- 7.5 The records officer keeps the adopted text and its plain summary posted for at least 10 years.

Before members vote

This is not legal advice. A lawyer, or a person who works in First Nation governance, should review this draft before members vote. A by-law that conflicts with the Indian Act, the Criminal Code, or other federal law has no effect to the extent of the conflict. Police and prosecutors do not always enforce band by-laws, and the Minister's powers under the First Nations Financial Transparency Act, section 13, are optional. That is why the consequences in this draft are internal: office, pay, repayment, and eligibility.